STATE OF VERMONT

SUPERIOR COURT **FAMILY DIVISION**

Unit **Case No. _____**

Plaintiff	Date Of Birth		Defendant	Date Of Birth
		V.		

Defendant's Full Physical Address: _____

Complaint for Relief from Abuse

Relationship of the Parties

- ☐ Spouses
- ☐ Former Spouses
- ☐ Persons who are or have been living together or sharing occupancy
- ☐ Persons who are or have been engaged in a sexual relationship
- ☐ Persons who are or have been dating
- ☐ Family Member *(describe relationship)* _____
- ☐ Other *(describe relationship)* _____

Existing Court Order or Proceedings

Is there an existing order or a pending court proceeding involving you, the Defendant, and/or the child(ren) in this Complaint?

	No	Yes		No	Yes
Divorce/Separation	☐	☐	Civil Union Dissolution	☐	☐
Relief from Abuse	☐	☐	Criminal	☐	☐
Parentage	☐	☐	Guardianship	☐	☐
Juvenile (DCF)	☐	☐	Child Support	☐	☐

State(s) _____ County _____

Attorney for Plaintiff _____ Attorney for Defendant _____

Facts

1. ☐ On _____ Defendant did the following to:
   (date of most recent incident / date range of abuse)
   ☐ Plaintiff ☐ Child(ren)
   Names of Child(ren) _____
   - ☐ Attempted to cause or caused physical harm.
   - ☐ Placed them in fear of imminent serious physical harm.
   - ☐ Abused the child(ren) named above (physically injured or otherwise treated the child(ren) in a manner which placed the child(ren's) life, health, development or welfare in jeopardy)) as defined in 33 V.S.A. § 4912(1)).
   - ☐ Coercively controlled ☐ Plaintiff and/or ☐ child(ren) as defined in 15 V.S.A. § 1101(2)
   - ☐ Stalked ☐ Plaintiff and/or ☐ child(ren) named above as defined in 12 V.S.A. § 5131(6) on *(date)* _____ and *(date)* _____.
   - ☐ Sexually assaulted ☐ Plaintiff and/or ☐ child(ren) named above as defined in 12 V.S.A. § 5131(5)
2. ☐ There is a danger of further abuse to: ☐ Plaintiff and/or ☐ child(ren) named above.
3. ☐ Defendant has used, displayed, or threatened to use a firearm against me or against a family member.
4. ☐ Defendant is incarcerated and has been convicted of one of the crimes specified in 15 V.S.A. §1103 (c)(1)(B).
5. ☐ Plaintiff has been/will be forced from the residence and will be without shelter unless Defendant is ordered to leave the residence located at: _____.
   It is ☐ owned ☐ rented/leased in: ☐ Plaintiff's name ☐ Defendant's name ☐ Both ☐ Other
6. ☐ Plaintiff ☐ Defendant is a recipient of a Reach Up program.

Request for Relief

The Plaintiff requests that the court:

- ☐ order Defendant to not abuse ☐ Plaintiff and/or ☐ child(ren) named above and not interfere with his/her/their personal liberty.
- ☐ order Defendant to refrain from ☐ stalking or ☐ sexually assaulting ☐ Plaintiff and/or ☐ child(ren) named above.
- ☐ order Defendant to immediately leave the residence (listed in #5) and to order sole possession to the Plaintiff.
- ☐ order Defendant not to possess or purchase firearms for the duration of the order
- ☐ order Defendant to surrender immediately all firearms under the Defendant's ownership, possession, or control to law enforcement.
- ☐ order temporary living expenses for the Plaintiff
- ☐ order Defendant to return any personal documents in their possession pertaining to ☐ Plaintiff and/or ☐ child(ren) named above (e.g. immigration documents, birth certificates, and identification cards)
- ☐ order temporary possession of vehicle to Plaintiff, provided that Plaintiff:
  - ☐ is the owner or joint owner of the vehicle
  - ☐ is the primary payor on the vehicle loan
  - ☐ has primary possession or control of vehicle
  - ☐ has been restricted from using the vehicle by the defendant.
- ☐ order Defendant to complete domestic violence accountability program approved by the Council on Domestic Violence.
- ☐ order temporary child support
- ☐ order Defendant to refrain from cruelly treating ☐ the pet(s) of the parties or ☐ the pet(s) of the child(ren) named above.
- ☐ award temporary possession and control of any pet(s) owned by the parties or by the child(ren) named above to the Plaintiff.
- ☐ ordered Defendant to remain _____ feet away from ☐ Plaintiff and/or ☐ child(ren) named above.
- ☐ order that Defendant may not contact ☐ Plaintiff and/or ☐ child(ren) named above in any way.
- ☐ award temporary Parental Rights and Responsibilities of the child(ren) named below to Plaintiff or to other persons. (Child(ren) of the Plaintiff and Defendant)

Name of Child	Date of Birth	Relationship to Plaintiff	Relationship to Defendant
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

☐ Other: _____

☐ The Plaintiff requests on an emergency basis the same relief as requested above, to the extent available.

The facts to support this request for relief can be found on the Plaintiff's accompanying affidavit.

Date

_____

_____

Signature of Plaintiff/Attorney

_____

Printed Name